

		and is often done where there is legally recognized basis for recovery in both contract and tort.” (<i>Gebert v. Yank</i> (1985) 172 Cal.App.3d 544, 591.) Finally, the Court notes that Defendant repeatedly asserts that Plaintiff lacks evidence of negligence; however, Plaintiff clearly declares that there was \$50,000 within the safe deposit box on August 26, 2022. (¶11 of McMillen Declaration.) Plaintiff additionally declares that he did not remove anything from the box, authorize anyone else to remove anything from the box, or take any action that would assist anyone in removing anything from the box. (¶12 of McMillen Declaration.) Despite the above, the box was empty when he returned on February 26, 2024. (¶13 of McMillen Declaration.) The above is sufficient evidence of negligence to avoid summary judgment. As noted by Plaintiff, “[e]xcept where additional evidence is required by statute, the direct evidence of one witness who is entitled to full credit is sufficient for proof of any fact.” (Evid. Code, § 411.) Additionally, “[a] court generally cannot resolve questions about a declarant’s credibility in a summary judgment proceeding [citations] unless admissions against interest have been made which justify disregard of any dissimulation.” (<i>AARTS Productions, Inc. v. Crocker National Bank</i> (1986) 179 Cal.App.3d 1061, 1065.) No such admissions have been made herein. Moreover, the above is sufficient to invoke <i>res ipsa loquitur</i>. “Res ipsa loquitur, when translated, means simply ‘the thing, or affair, speaks for itself,’ and, so speaking, authorizes the inference of negligence in the absence of a showing to the contrary.” (<i>Zentz v. Coca Cola Bottling Co. of Fresno</i> (1952) 39 Cal.2d 436, 440 [internal quotations cleaned up].) “Where the thing is shown to be under the management of the defendant or his servants, and the accident is such as in the ordinary course of things does not happen if those who have the management use proper care, it affords reasonable evidence, in the absence of explanation by the defendant, that the accident arose from want of proper care.” (<i>Zentz v. Coca Cola Bottling Co. of Fresno</i> (1952) 39 Cal.2d 436, 441.) This presumption has been applied, wherein a “sum of money” was abstracted from a safe deposit box. (See <i>Cussen v. Southern California Sav. Bank</i> (1901) 133 Cal. 534, 537.) Based on all the above, the Motion for Summary Judgment or Summary Adjudication brought by Defendant is DENIED.
3	Holcomb vs. Raging Bull Enterprises, Inc.	<u>Motion for Attorney Fees.</u> Defendants Raging Bull Enterprises, Inc. dba Orange County Singles and Monique Butler aka Nikki S. Bianco move for an award of attorney’s fees against Plaintiff Jessica Holcomb. For the following reasons, the unopposed motion is GRANTED IN A REDUCED AMOUNT. Plaintiff shall pay Defendants the amount of \$106,745 in attorney’s fees and \$1,308.57 in costs.